

has been given under subsection 217 (1);

(c) requiring a supplier to promptly restore the vital service when directed to do so by an official named in the by-law;

(d) prohibiting a person from hindering, obstructing or interfering with or attempting to hinder, obstruct or interfere with the official or person referred to in subsection 218 (1) in the exercise of a power or performance of a duty under this section or sections 217 to 223;

(e) providing that a person who contravenes or fails to comply with a vital services by-law is guilty of an offence for each day or part of a day on which the offence occurs or continues;

(f) providing that every director or officer of a corporation that is convicted of an offence who knowingly concurs in the commission of the offence is guilty of an offence;

(g) authorizing an official named in the by-law to enter into agreements on behalf of the local municipality with suppliers of vital services to ensure that adequate and suitable vital services are provided for rental units. 2006, c. 17, s. 216 (1).

Exception

(2) A vital services by-law does not apply to a landlord with respect to a rental unit to the extent that the tenant has expressly agreed to obtain and maintain the vital services. 2006, c. 17, s. 216 (2).

Contents of vital services by-law

(3) A vital services by-law may,

(a) classify buildings or parts of buildings for the purposes of the by-law and designate the classes to which it applies;

(b) designate areas of the local municipality in which the by-law applies;

(c) establish standards for the provision of adequate and suitable vital services;

(d) prohibit a landlord from ceasing to provide a vital service for a rental unit except when necessary to alter or repair the rental unit and only for the minimum period necessary to effect the alteration or repair;

(e) provide that a landlord shall be deemed to have caused the cessation of a vital service for a rental unit if the landlord is obligated to pay the supplier for the vital service and fails to do so and, as a result of the non-payment, the vital service is no longer provided for the rental unit. 2006, c. 17, s. 216 (3).

Notice by supplier

217 (1) A supplier shall give notice of an intended discontinuance of a vital service only if the vital service is to be discontinued for the rental unit because the landlord has breached a contract with the supplier for the supply of the vital service. 2006, c. 17, s. 217 (1).

Same

(2) The notice shall be given in writing to the clerk of the local municipality at least 30 days before the supplier ceases to provide the vital service. 2006, c. 17, s. 217 (2).

Inspection

218 (1) An official named in a vital services by-law or a person acting under his or her instructions may, at all reasonable times, enter and inspect a building or part of a building with respect to which the by-law applies for the purpose of determining compliance with the by-law or a direction given under subsection 221 (1). 2006, c. 17, s. 218 (1).

Same

(2) Despite subsection (1), the official or person shall not enter a rental unit,

(a) unless he or she has obtained the consent of the occupier of the rental unit after informing him or her that he or she may refuse permission to enter the unit; or

(b) unless he or she is authorized to do so by a warrant issued under section 231. 2006, c. 17, s. 218 (2).

Services by municipality

219 (1) If a landlord does not provide a vital service for a rental unit in accordance with a vital services by-law, the local municipality may arrange for the service to be provided. 2006, c. 17, s. 219 (1).

Lien

(2) The amount spent by the local municipality under subsection (1) plus an administrative fee of 10 per cent of that amount shall, on registration of a notice of lien in the appropriate land registry office, be a lien in favour of the local municipality against the property at which the vital service is provided. 2006, c. 17, s. 219 (2).

No special lien

(3) Subsection 349 (3) of the Municipal Act, 2001 and subsection 314 (3) of the City of Toronto Act, 2006 do not apply with respect to the amount spent and the fee, and no special lien is created under either subsection. 2006, c. 32, Sched. C, s. 56 (4).

Certificate

(4) The certificate of the clerk of the local municipality as to the amount spent is proof, in the absence of evidence to the contrary, of the amount. 2006, c. 17, s. 219 (4).

Interim certificate

(5) Before issuing a certificate referred to in subsection (4), the clerk shall send an interim certificate by registered mail to the registered owner of the property that is subject to the lien and to all mortgagees or other encumbrancers registered on title. 2006, c. 17, s. 219 (5).

▼ Section Amendments with date in force (d/m/y)

Appeal

220 An affected owner, mortgagee or other encumbrancer may, within 15 days after the interim certificate is mailed, appeal the amount shown on it to the council of the local municipality. 2006, c. 17, s. 220.

Payments transferred

221 (1) If the local municipality has arranged for a vital service to be provided to a rental unit, an official named in the vital services by-law may direct a tenant to pay any or all of the rent for the rental unit to the local municipality. 2006, c. 17, s. 221 (1).

Effect of payment

(2) Payment by a tenant under subsection (1) shall be deemed not to constitute a default in the payment of rent due under a tenancy agreement or a default in the tenant's obligations for the purposes of this Act. 2006, c. 17, s. 221 (2).

Use of money

222 (1) The local municipality shall apply the rent received from a tenant to reduce the amount that it spent to provide the vital service and the related administrative fee. 2006, c. 17, s. 222 (1).

Accounting and payment of balance

(2) The local municipality shall provide the person otherwise entitled to receive the rent with an accounting of the rents received for each individual rental unit and shall pay to that person any amount remaining after the rent is applied in accordance with subsection (1). 2006, c. 17, s. 222 (2).

Immunity

223 (1) No proceeding for damages or otherwise shall be commenced against an official or a person acting under his or her instructions or against an employee or agent of a local municipality for any act done in good faith in the performance or intended performance of a duty or authority under any of sections 215 to 222 or under a by-law passed under section 216 or for any alleged neglect or default in the performance in good faith of the duty or authority. 2006, c. 17, s. 223 (1).

Same

(2) Subsection (1) does not relieve a local municipality of liability to which it would otherwise be subject. 2006, c. 17, s. 223 (2).

PART XIV

MAINTENANCE STANDARDS

Application of prescribed standards

Local municipalities

224 (1) The prescribed maintenance standards apply to a residential complex located

in a local municipality and the rental units located in the residential complex if,

- (a) there is no municipal property standards by-law that applies to the residential complex; or
- (b) there is a municipal property standards by-law that applies to the residential complex and the prescribed circumstances apply. 2016, c. 25, Sched. 5, s. 5.

Unorganized territory

(2) The prescribed maintenance standards apply to a residential complex located in unorganized territory and the rental units located in the residential complex, but only for the purposes of a landlord's obligations under subsection 20 (1) with respect to maintenance standards. 2016, c. 25, Sched. 5, s. 5.

▼ Section Amendments with date in force (d/m/y)

Local municipality to receive complaints

224.1 (1) If the prescribed maintenance standards apply to a residential complex located in a local municipality, the local municipality in which the residential complex is located shall receive any written complaint from a current tenant of a rental unit located in the residential complex respecting the standard of maintenance that prevails with respect to the rental unit or the residential complex. 2016, c. 25, Sched. 5, s. 5.

Complaints to be investigated

(2) Upon receiving a complaint under this section, the local municipality shall cause an inspector to make whatever inspection the local municipality considers necessary to determine whether the landlord has complied with the prescribed maintenance standards. 2016, c. 25, Sched. 5, s. 5.

▼ Section Amendments with date in force (d/m/y)

Inspector's work order

225 (1) If an inspector is satisfied that the landlord of a residential complex has not complied with a prescribed maintenance standard that applies to the residential

complex, the inspector may make and give to the landlord a work order requiring the landlord to comply with the prescribed maintenance standard. 2006, c. 17, s. 225 (1).

Same

- (2) The inspector shall set out in the order,
- (a) the municipal address or legal description of the residential complex;
 - (b) reasonable particulars of the work to be performed;
 - (c) the period within which there must be compliance with the terms of the work order; and
 - (d) the time limit for applying under section 226 to the Board for a review of the work order. 2006, c. 17, s. 225 (2).

Review of work order

226 (1) If a landlord who has received an inspector's work order is not satisfied with its terms, the landlord may, within 20 days after the day the order is issued, apply to the Board for a review of the work order. 2006, c. 17, s. 226 (1).

Order

- (2) On an application under subsection (1), the Board may, by order,
- (a) confirm or vary the inspector's work order;
 - (b) rescind the work order, if it finds that the landlord has complied with it; or
 - (c) quash the work order. 2006, c. 17, s. 226 (2).

Inspectors

226.1 A local municipality may appoint inspectors for the purposes of sections 224.1 and 225. 2016, c. 25, Sched. 5, s. 6.

▼ Section Amendments with date in force (d/m/y)

Duties of local municipality

226.2 A local municipality shall,

- (a) monitor compliance with the prescribed maintenance standards as they apply to residential complexes located in the local municipality;
 - (b) investigate an alleged offence,
 - (i) under clause 234 (t) that is a failure to comply with a work order issued by an inspector appointed by the local municipality,
 - (ii) under clause 234 (u) that is the obstruction of, or interference with, an inspector appointed by the local municipality who is exercising a power of entry under section 230 or 231, and
 - (iii) under clause 234 (v) that is the furnishing of false or misleading information in any material provided to an inspector appointed by the local municipality; and
 - (c) where the circumstances warrant, commence or cause to be commenced proceedings with respect to an alleged offence described in clause (b). 2016, c. 25, Sched. 5, s. 6.
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▼ Section Amendments with date in force (d/m/y)

Protection from personal liability

226.3 (1) No proceeding for damages shall be commenced against an inspector appointed by a local municipality under section 226.1 or an employee or agent of a local municipality for any act done in good faith in the performance or intended performance of any duty or in the exercise or intended exercise of any power under this Part or section 230 or 231 or for any neglect or default in the performance or exercise in good faith of such a duty or power. 2016, c. 25, Sched. 5, s. 6.

Liability of local municipality

(2) Subsection (1) does not relieve a local municipality of any liability to which it would otherwise be subject. 2016, c. 25, Sched. 5, s. 6.

▼ Section Amendments with date in force (d/m/y)

Transition, complaints received before commencement date

226.4 (1) Sections 224 to 226, 227, 229 and 230, and paragraph 74 of subsection 241 (1), as they read immediately before the commencement date, and the regulations made under paragraph 74, as they read immediately before that date, continue to apply for the following purposes with respect to a complaint that was received by the Minister under section 224 before that date:

1. Investigating the complaint and issuing a work order with respect to it.
2. Ensuring compliance with a work order issued with respect to the complaint before, on or after the commencement date.
3. Making, continuing or finally disposing of an application under section 226 for the review of a work order issued with respect to the complaint before, on or after the commencement date.
4. Charging a municipality for the cost associated with an inspection related to the complaint and, if applicable, issuing a notice of payment due and filing the notice in the Superior Court of Justice.
5. Investigating, and commencing or causing to be commenced proceedings with respect to, an alleged offence under clause 234 (t), (u) or (v) that occurred before, on or after the commencement date, other than an offence described in clause 226.2 (b). 2016, c. 25, Sched. 5, s. 6.

Definition

(2) In this section,

“commencement date” means the day section 5 of Schedule 5 to the *Promoting Affordable Housing Act, 2016* comes into force. 2016, c. 25, Sched. 5, s. 6.

▼ Section Amendments with date in force (d/m/y)

PART XV ADMINISTRATION AND ENFORCEMENT

Duties of Minister

227 Except for section 224 and except as otherwise provided in sections 224.1 and 226.2, the Minister shall,

- (a) monitor compliance with this Act;
- (b) investigate cases of alleged failure to comply with this Act; and
- (c) where the circumstances warrant, commence or cause to be commenced proceedings with respect to alleged failures to comply with this Act. 2006, c. 17, s. 227; 2016, c. 25, Sched. 5, s. 7.

▼ Section Amendments with date in force (d/m/y)

Delegation

228 The Minister may in writing delegate to any person any power or duty vested in the Minister under this Act, subject to the conditions set out in the delegation. 2006, c. 17, s. 228.

Investigators

229 The Minister may appoint investigators for the purpose of investigating alleged offences under this Act, other than alleged offences described in clause 226.2 (b). 2016, c. 25, Sched. 5, s. 8.

▼ Section Amendments with date in force (d/m/y)

Inspections by municipal inspectors

230 (1) Subject to subsection (6), an inspector appointed by a local municipality under section 226.1 may, at all reasonable times and upon producing proper identification, enter any property for the purpose of carrying out his or her duty under Part XIV and may,

- (a) require the production for inspection of documents or things, including drawings or specifications, that may be relevant to the inspection;
- (b) inspect and remove documents or things relevant to the inspection for the purpose of making copies or extracts;
- (c) require information from any person concerning a matter related to the inspection;
- (d) be accompanied by a person who has special or expert knowledge in relation

to the subject-matter of the inspection;

(e) alone or in conjunction with a person possessing special or expert knowledge, make examinations or take tests, samples or photographs necessary for the purposes of the inspection; and

(f) order the landlord to take and supply at the landlord's expense such tests and samples as are specified in the order. 2006, c. 17, s. 230 (1); 2016, c. 25, Sched. 5, s. 9.

Samples

(2) The inspector shall divide the sample taken under clause (1) (e) into two parts and deliver one part to the person from whom the sample is taken, if the person so requests at the time the sample is taken and provides the necessary facilities. 2006, c. 17, s. 230 (2).

Same

(3) If an inspector takes a sample under clause (1) (e) and has not divided the sample into two parts, a copy of any report on the sample shall be given to the person from whom the sample was taken. 2006, c. 17, s. 230 (3).

Receipt

(4) An inspector shall provide a receipt for any documents or things removed under clause (1) (b) and shall promptly return them after the copies or extracts are made. 2006, c. 17, s. 230 (4).

Evidence

(5) Copies of or extracts from documents and things removed under this section and certified as being true copies of or extracts from the originals by the person who made them are admissible in evidence to the same extent as and have the same evidentiary value as the originals. 2006, c. 17, s. 230 (5).

Where warrant required

(6) Except under the authority of a warrant issued under section 231, an inspector shall not enter any room or place actually used as a dwelling without requesting and obtaining the consent of the occupier, first having informed the occupier that the